

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
DEVON SHIRLEY,

Plaintiff

SUMMONS

Index Number

Date Purchased:

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT and NEW YORK CITY
POLICE OFFICERS YERALDY BONIFACIO,
SHIELD # 4233, MICHAEL DAPPOLONIA,
SERGEANT RICHARD PIMENTEL SHIELD #5439,
and POLICE OFFICERS JOHN/JANE DOE'S
#s 1-5,

the basis for venue
is plaintiff's residence
& location of incident

Defendants.

SUMMONS

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To the above-named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney within twenty (20) days after service of this summons upon you, exclusive of the day of service, (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 3, 2017

Kyle B. Watters
Kyle B. Watters, P.C.
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Attorney for Plaintiff

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
DEVON SHIRLEY,

Plaintiff

COMPLAINT
Index Number

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT and NEW YORK CITY
POLICE OFFICERS YERALDY BONIFACIO,
SHIELD # 4233, MICHAEL DAPPOLONIA,
SERGEANT RICHARD PIMENTEL SHIELD #5439,
and POLICE OFFICERS JOHN/JANE DOE'S
#s 1-5,

Defendants.

----- X
Plaintiff, for his Verified Complaint, by her attorney, Kyle B. Watters, P.C.,

states and alleges the following upon information and belief:

The Parties

1. At all times hereinafter mentioned, the plaintiff, Devon Shirley, is a resident of the County of New York, State of New York.
2. At all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, [hereinafter "THE CITY"] is a municipal corporation organized and existing under, and by virtue of, the laws of the State of New York.
3. At all times hereinafter mentioned, the defendant, THE NEW YORK CITY POLICE DEPARTMENT, maintains its principal office in the County of New

York, State of New York.

4. At all times hereinafter mentioned, the defendant, NEW YORK CITY POLICE OFFICER YERALDY BONIFACIO, SHIELD # 4233 is an employee of THE POLICE DEPARTMENT OF THE CITY OF NEW YORK, acting in the scope of his employment.

5. At all times hereinafter mentioned, the defendant, NEW YORK CITY POLICE OFFICER, MICHAEL DAPPOLONIA, is an employee of THE POLICE DEPARTMENT OF THE CITY OF NEW YORK, acting in the scope of his employment.

6. At all times hereinafter mentioned, the defendant, NEW YORK CITY POLICE SERGEANT RICHARD PIMENTEL SHIELD #5439, is an employee of THE POLICE DEPARTMENT OF THE CITY OF NEW YORK, acting in the scope of his employment.

7. At all times hereinafter mentioned, the defendants, NEW YORK CITY POLICE OFFICERS JOHN/JANE DOES #1-5 are employees of THE POLICE DEPARTMENT OF THE CITY OF NEW YORK, acting in the scope of their employment.

Conditions Precedent For The Instant Action

8. On July 25, 2016, plaintiff Devon Shirley filed a Notice of Claim with the defendant, THE CITY, for adjustment of damages sustained by the plaintiff

Devon Shirley herein.

9. On June 30, 2017, the defendant, THE CITY, took plaintiff Devon Shirley's deposition pursuant to Section 50-h of the General Municipal Law.

10. More than thirty (30) days has elapsed since serving the aforementioned Notice of Claim and to this date, the defendant, THE CITY, has neglected and refused to make adjustment thereon.

11. The earliest date of accrual for the causes of action being June 30, 2016, less than one year and ninety (90) days has elapsed before the commencement of this action.

The Incident

12. On or about June 30, 2016 at approximately 8:30 a.m. the police arrested Plaintiff Devon Shirley.

13. The defendant's arrested plaintiff Devon Shirley based upon allegations set out in a criminal court complaint signed by defendant PO Yeraldi Bonifacio Shield 4233, that Plaintiff Devon Shirley was in possession of drugs the police claim they found on June 24, 2016 inside Apartment 1, located at 359 West 117th Street in Manhattan.

14. Plaintiff Devon Shirley was not, is not and has never been a resident of the room in Apartment 1 where the drugs were alleged to be recovered from, located at 359 West 117th Street in Manhattan.

15. At no time on June 24, 2016, or the days, weeks or months before that date had Devon Shirley been inside the room in Apartment 1 where the drugs were recovered from located at 359 West 117th Street in Manhattan.

16. Plaintiff Devon Shirley at the time of his arrest and thereafter was handcuffed and kept in a holding cell at the precinct.

17. Plaintiff spent approximately 12 hours in custody before he was brought before a judge.

18. Plaintiff was held in custody on bail until he was released on June 30, 2016.

19. Plaintiff Devon Shirley appeared in court to face criminal charges on July 5, 2016, September 19, 2016 and November 26, 2016.

20. The criminal case against Devon Shirley was dismissed on January 25, 2017.

AS AND FOR A FIRST CAUSE OF ACTION
AGAINST ALL DEFENDANTS
AS TO DEVON SHIRLEY
FALSE ARREST

21. Plaintiff Devon Shirley repeats, reiterates, and re-alleges each and every allegation set forth in paragraphs "1" through "20" of this Complaint, with the same force and effect as if more fully set forth herein.

22. At the above time and place, plaintiff, Devon Shirley, was illegally arrested, stopped and detained by defendants, through the actions of its agents, employees and officer(s), named and those as yet unknown (all within the scope of their

employment), in violation of his rights under the New York State Constitution and New York State Law.

23. At the above time and place, plaintiff, Devon Shirley, was consciously aware of his physical arrest, did not consent to it, and was otherwise harmed by it.

24. That such physical arrest was unlawful as it was without warrant, without probable cause, and without other legal privilege or justification.

25. Plaintiff, Devon Shirley, was illegally seized and detained for a period of time by the aforementioned defendants. These actions of said defendants constituted false arrest as to plaintiff, Devon Shirley.

26. As a consequence of said defendants' actions, plaintiff, Devon Shirley was deprived of his freedom for a period of time, suffered injuries, and was subjected to great fear and terror and personal humiliation and degradation, and has continued to suffer mental and emotional distress.

27. The defendants involved in such false arrest knew or had reason to know, upon information and belief, that such arrest was false, and had a realistic opportunity, upon information and belief, to intervene to prevent such false arrest from occurring.

28. By reason of the foregoing, plaintiff, Devon Shirley, has been injured and damaged in a sum in excess of the jurisdictional threshold of this Court.

**AS AND FOR A SECOND CAUSE OF ACTION
AGAINST ALL DEFENDANTS
DEVON SHIRLEY
MALICIOUS PROSECUTION**

29. Plaintiff repeats, reiterates, and re-alleges each and every allegation set forth in paragraphs “1” through “28” of this Complaint, with the same force and effect as if more fully set forth herein.

30. Defendants maliciously and without reasonable or probable cause, caused plaintiff to be charged with various crimes and to be prosecuted by the New York County District Attorney’s Office.

31. As a result of the foregoing, plaintiff has been injured in his good name and reputation, has been subjected to great indignity and humiliation, pain and distress of mind and body, and has been prevented from attending to his usual business.

32. By reason of the foregoing, plaintiff has been injured and damaged in a sum in excess of the jurisdictional threshold of this Court.

WHEREFORE, the plaintiff Devon Shirley demands judgment against the defendants on the First Cause of Action in a sum in excess of the jurisdictional threshold of this Court, on the Second Cause of Action in a sum in excess of the jurisdictional threshold of this Court, and demands such other further and different

relief which the Court deems just and proper.

Dated: New York, New York
September 3, 2017

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